

MANILA LAW COLLEGE

PHILIPPINE CRIMINAL LAW 1 LECTURE & TREATISE

Complete Book I Compendium (Articles 1–113, Revised Penal Code / Act No. 3815 as Amended)

Paragraph Edition | First Semester, AY 2026–2027 | Instructor: ATTY. SHANDER A. MATIENZO

SYLLABUS ARCHITECTURE & STATUTORY MATRIX (PARAGRAPH FORMAT)

Course Overview: Comprehensive three-unit Juris Doctor course covering the fundamental principles, doctrines, and statutory provisions of Philippine Criminal Law under Book I (Articles 1–113) of the Revised Penal Code (Act No. 3815, as amended) and relevant Special Penal Statutes.

Primary Statutory Sources: Act No. 3815 (RPC), 1987 Constitution (Art. III Bill of Rights), R.A. 10951 (RPC Fines & Property Adjustments), R.A. 10592 (Good Conduct Time Allowances), R.A. 9344 as amended by R.A. 10630 (Juvenile Justice & Welfare Act), R.A. 9262 (Anti-VAWC / Battered Woman Syndrome), R.A. 9346 (Prohibition of Death Penalty), P.D. 968 as amended by R.A. 10707 (Probation Law), Act No. 4103 as amended (Indeterminate Sentence Law).

Format Note: Synthesized in complete narrative paragraph format for streamlined reading and smooth text-to-speech audio synthesis without data grid tables.

PART I: GENERAL PRINCIPLES OF CRIMINAL LAW

1. Concept, Nature, and Scope of Criminal Law

Criminal Law is that branch or division of municipal law which defines crimes, treats of their nature, and provides for their punishment (12 Cyc. 129; Reyes, Criminal Law, Book I). It is public substantive law because it defines the sovereign State's right to inflict punishment (*jus puniendi*) and governs the relation of the individual to the sovereign State.

Core Legal Terminology & Statutory Classifications

- **Crime:** A generic term referring to any act committed or omitted in violation of public law forbidding or commanding it.
- **Felony (Delito):** An act or omission punishable specifically under the Revised Penal Code (Act No. 3815). Felonies are committed either by means of deceit (*dolo*) or fault (*culpa*) pursuant to Article 3 of the RPC.
- **Offense:** An act or omission punishable under Special Penal Laws enacted by the legislative authority outside the RPC (e.g., R.A. 9165 for Dangerous Drugs, R.A. 9262 for Anti-VAWC, B.P. Blg. 22 for Bouncing Checks).
- **Infraction or Misdemeanor:** A violation of a local or municipal ordinance enacted by a Sangguniang Panlungsod or Sangguniang Bayan (e.g., local curfew, anti-littering, traffic ordinances).
- **Delict:** A civil wrong or injury resulting directly from a criminal act, creating civil liability *ex delicto* under Article 100 of the Revised Penal Code.

- Private Offenses: Crimes against chastity or honor that cannot be prosecuted de oficio without a formal sworn complaint filed by the offended party under Article 344 of the RPC and Rule 110 of the Rules of Court (e.g., adultery, concubinage, seduction, abduction).
- Victimless Crimes: Acts penalized where there is no direct individual complaining victim, designed to protect public order and morals (e.g., consensual gambling, vagrancy).
- Status Offenses: Offenses predicated upon an individual's personal status or condition rather than a specific overt criminal act (e.g., curfew violations applied exclusively to minors).

2. Sources of Philippine Criminal Law

Philippine criminal law is strictly statutory. Under our constitutional framework, there are NO common law crimes. The sources of Philippine criminal law are:

- The Revised Penal Code (Act No. 3815, as amended): Enacted on December 8, 1930; took effect on January 1, 1932. Approved in Spanish (Código Penal Revisado).
- Special Penal Laws: Statutes enacted by the Philippine Legislature, National Assembly, Congress of the Philippines, Batasang Pambansa, and Presidential Decrees / Executive Orders with valid legislative authority.
- Penal Administrative Regulations and Executive Orders: Valid only when authorized by an enabling primary statute that sets an adequate standard, prescribes penalties for violations, and is published in full in accordance with Tañada v. Tuvera.
- Decisions of the Supreme Court: Under Article 8 of the Civil Code, judicial decisions applying or interpreting laws form part of the legal system, but the judiciary has no constitutional power to create crimes (Separation of Powers).

3. Philosophies and Theories of Criminal Law

Philippine criminal law reflects four major philosophical theories:

- Classical Theory (Juridical): Premised on the belief that man possesses absolute free will and moral discernment to choose between good and evil. The purpose of penalty is Retributive Justice ('an eye for an eye'), where the penalty must be mathematically proportionate to the gravity of the crime. This is the predominant framework of the Revised Penal Code, focusing primarily on the CRIME rather than the criminal.
- Positivist Theory (Realistic / Italian): Premised on the view that man is constrained by biological, psychological, hereditary, and social phenomena. The purpose of penalty is reformation, rehabilitation, and social defense, tailored to the dangerousness of the offender. It focuses on the CRIMINAL and is reflected in Impossible Crimes (Art. 4, Par. 2), the Indeterminate Sentence Law, and the Probation Law.
- Eclectic or Mixed Theory: Combines the Classical and Positivist approaches. It retains retributive statutory penalties for heinous offenses while allowing individualized mitigation, restorative justice, executive clemency, and non-confinement rehabilitation. Philippine criminal jurisprudence is fundamentally Eclectic.
- Utilitarian or Protective Theory: Holds that the primary purpose of criminal law is the protection of society through general and specific deterrence, ensuring that the pain of the penalty outweighs the pleasure of the crime.

Landmark Jurisprudence on Penal Theories

People v. Marivic Genosa (G.R. No. 135981, 29 September 2000 & 15 January 2004)

Facts: Marivic Genosa, an abused wife suffering from Battered Woman Syndrome (BWS), killed her husband while he was asleep after a severe beating episode.

Ruling: The Supreme Court recognized Battered Woman Syndrome within Philippine jurisprudence, modifying the classical rigid standards of self-defense to account for the psychological and physiological trauma of battered

women, later codified by Congress into Republic Act No. 9262 (Anti-VAWC Act, Sec. 26).

Norma de Joya v. Jail Warden of Batangas (G.R. Nos. 15948-19, 10 December 2003)

Doctrine: Penal laws must be interpreted in light of modern penological concepts of rehabilitation and humane custody. Confinement is intended not for sheer vengeance but for the reformation of the offender and social reintegration.

4. State Authority to Punish Crimes (Jus Puniendi) & Constitutional Limitations

The right of the State to prosecute and punish crimes is an inherent attribute of sovereignty rooted in Police Power (Art. II, Sec. 5, 1987 Const.). In *People v. Santiago* (43 Phil. 120), the Court held that crimes are offenses against the whole People of the Philippines, and public prosecutions cannot be surrendered or compromised by private individuals.

Constitutional Limitations on Penal Legislation

- Ex Post Facto Law Prohibition (Art. III, Sec. 22, 1987 Const.; Art. 21, RPC): Prohibits any law that makes an act criminal which was innocent when done, aggravates a crime, increases the penalty, or alters the legal rules of evidence to convict on less or different testimony (*In re Kay Villegas Kami, Inc.*, 35 SCRA 429; *People v. Villaraza*, 81 SCRA 95; *U.S. v. Diaz-Conde*, 42 Phil. 766; *People v. Derilo*, G.R. No. 117818).
- Bill of Attainder Prohibition (Art. III, Sec. 22, 1987 Const.): Prohibits legislative acts that inflict punishment upon specified individuals or groups without judicial trial (*People v. Ferrer*, 48 SCRA 382, upholding the Anti-Subversion Act because it required proof of overt acts in court).
- Due Process & Void-for-Vagueness Doctrine (Art. III, Sec. 1 & Sec. 14(2), 1987 Const.): A penal statute must give fair notice of prohibited conduct. If men of common intelligence must necessarily guess at its meaning and differ as to its application, it violates due process (*Romualdez v. Sandiganbayan*, G.R. No. 152259; *SPARK v. Quezon City*, G.R. No. 225442 on youth curfew ordinances).
- Cruel, Degrading, or Inhuman Punishment Prohibition (Art. III, Sec. 19(1), 1987 Const.): Prohibits penalties that shock the moral sense of the community or involve torture and lingering death. Death penalty imposition was prohibited by R.A. 9346.
- Publication Requirement (Art. 2, Civil Code): All penal laws and administrative circulars imposing penal sanctions must be published in full in the Official Gazette or a newspaper of general circulation prior to effectivity (*Tañada v. Tuvera*, 136 SCRA 27; *Pesigan v. Angeles*, 129 SCRA 174).

5. The Three Fundamental Characteristics of Criminal Law (G-T-P)

Philippine penal law is characterized by Generality, Territoriality, and Prospectivity (G-T-P):

A. Generality Principle (Civil Code Art. 14; 1987 Const. Art. VI Sec. 1)

Penal laws are binding upon all persons who live or sojourn in Philippine territory, regardless of nationality, race, or sex. Exceptions:

- Treaty Stipulations: Visiting Forces Agreement (VFA Art. V) and Enhanced Defense Cooperation Agreement (EDCA) govern jurisdictional allocation between the Philippines and the United States for visiting military personnel.
- Principles of Public International Law & Diplomatic Immunity: Sovereigns and heads of state, foreign ambassadors, and ministers plenipotentiary are immune from local penal jurisdiction (R.A. 75). Consuls and commercial attachés are NOT diplomatically immune for private crimes (*Schneckenburger v. Moran*, 63 Phil. 249; *Liang v. People*, 323 SCRA 692).
- Jurisprudence on Generality: *United States v. Sweet* (1 Phil. 18 - civilian military employee subject to civilian courts); *Raquiza v. Bradford* (75 Phil. 50 - foreign military forces during war).

B. Territoriality Principle (RPC Art. 2; 1987 Const. Art. I)

Penal laws are enforceable only within the national territory of the Philippines (terrestrial, fluvial, maritime, and aerial domains).

Extraterritorial Exceptions under Article 2 of the Revised Penal Code:

- 1. Offenses committed aboard a Philippine ship or airship registered with Philippine authorities under the flag state rule.
- 2. Forging or counterfeiting any coin or currency note of the Philippines or obligations and securities issued by the Philippine Government.
- 3. Introduction into the Philippines of the forged obligations and securities mentioned above.
- 4. While being public officers or employees, committing an offense in the exercise of their official functions (e.g., direct bribery, malversation).
- 5. Committing any of the crimes against national security and the law of nations (Treason, Espionage, Piracy, Mutiny - *People v. Lo-lo & Saraw*, 43 Phil. 19).

Maritime Jurisdiction Rules for Foreign Merchant Vessels in Port:

- French Rule (Flag State): Crimes committed aboard a foreign merchant vessel in territorial waters are NOT triable by coastal state courts unless they affect the peace and security of the coastal territory.
- English Rule (Territorial State): Crimes committed aboard a foreign merchant vessel within territorial waters ARE triable by coastal state courts unless they involve only internal vessel discipline. The English Rule is the controlling doctrine in the Philippines (*U.S. v. Bull*, 15 Phil. 7; *People v. Look Chaw*, 18 Phil. 573; *U.S. v. Ah Sing*, 36 Phil. 978; *People v. Wong Cheng*, 46 Phil. 729 - smoking opium aboard a foreign merchant vessel in Manila Bay affects public order and is triable in Philippine courts).

C. Prospectivity Principle (RPC Arts. 1, 21, 22; Civil Code Art. 4)

Penal laws operate prospectively (*lex prospicit, non respicit*). Acts or omissions are judged under the law in force at the time of their commission (Art. 21, RPC).

Exception: Retroactivity of Favorable Penal Laws (Art. 22, RPC): Penal laws shall have a retroactive effect insofar as they favor the person guilty of a felony, who is NOT a habitual delinquent under Art. 62(5), RPC.

- *Gumabon v. Director of Prisons* (37 SCRA 420): Judicial decisions declaring a penal doctrine favorable to an accused apply retroactively via habeas corpus.
- *People v. Narvaez* (121 SCRA 389) and *People v. Ringor* (320 SCRA 342): Favorable statutory amendments lowering penalties apply to pending cases and convicts serving sentence.
- *People v. Lacson* (382 SCRA 365, 400 SCRA 267): Time-bar rules under procedural changes cannot be given retroactive effect if they impair substantive rights.

6. Rules of Construction and Interpretation of Penal Laws

- Rule of Strict Construction (In Dubio Pro Reo): Penal laws are strictly construed against the State and liberally in favor of the accused (Centeno v. Villalo-Pornillos, G.R. No. 113092; People v. Temporado, G.R. No. 173473).
- Harmonization of Provisions: All parts of a penal statute must be construed together to effectuate legislative intent (People v. Garcia, G.R. No. L-2873).
- Spanish Text Governs: The Revised Penal Code was enacted in Spanish (Act No. 3815); the Spanish text prevails over the English translation in case of ambiguity (People v. Mesias, G.R. No. L-45749).
- Article 5, RPC: Duty of Court in connection with acts unpunished by law (report to Chief Executive via DOJ) and excessive penalties (render judgment and recommend executive clemency).
- Effects of Repeal of Penal Law: (1) Total/Absolute Repeal decriminalizes the act and extinguishes pending actions and sentences (Tuates v. Bersamin, G.R. No. 138962); (2) Implied Repeal / Re-enactment preserves criminal liability for acts committed under the prior law (Benedicto v. CA, G.R. No. 125359).

PART II: FELONIES AND CRIMINAL LIABILITY (ARTICLES 3–10)

1. Definition, Nature, and Elements of Felonies (Article 3, RPC)

Article 3 of the Revised Penal Code defines felonies as acts and omissions punishable by law. Felonies are committed not only by means of deceit (*dolo*) but also by means of fault (*culpa*).

The Three Essential Elements of a Felony

- 1. There must be an act or omission: An act is any bodily movement tending to produce some effect in the external world (People v. Gonzales). An omission is the inaction or failure to perform a positive duty required by law (e.g., Art. 116 Misprision of Treason; Art. 208 Dereliction of Duty; Art. 275 Abandonment of Persons in Danger). Purely internal thoughts or criminal intentions without an overt act are never punishable under Philippine law (People v. Silvestre and Atienza, 56 Phil. 353).
- 2. The act or omission must be punishable by the Revised Penal Code: This codifies the universal principle *Nullum crimen, nulla poena sine lege* (there is no crime where there is no law punishing it; Evangelista v. People; Villareal v. People).
- 3. The act is performed or the omission incurred by means of *dolo* (deceit) or *culpa* (fault): *Dolo* involves deliberate malice and criminal intent, whereas *culpa* involves negligence, imprudence, lack of foresight, or lack of skill (Maderazo v. People; Ivler v. Modesto-San Pedro).

2. Felonies Committed by Deceit (*Dolo*) vs. Fault (*Culpa*)

Philippine penal law divides felonies into intentional felonies (*dolo*) and culpable felonies (*culpa*):

- Intentional Felonies (*Dolo* / Deceit): Require three indispensable requisites: (1) Freedom or voluntariness in the performance of the act; (2) Intelligence or mental capacity to understand the nature and consequences of the act; and (3) Criminal Intent (*mens rea*) to cause injury. Criminal intent is presumed from the unlawful act (*Actus non facit reum, nisi mens sit rea*; U.S. v. Apostol; U.S. v. Catolico; People v. Carmen). General intent is presumed from the criminal act, whereas specific intent must be affirmatively alleged and proven (e.g., intent to gain in theft, intent to kill in attempted homicide; People v. Puno; People v. Delim).
- Culpable Felonies (*Culpa* / Fault): Occur when the wrongful act results from imprudence (deficiency of action / doing an act without necessary precaution) or negligence (deficiency of perception / failing to foresee danger). The

elements are: (1) Freedom; (2) Intelligence; and (3) Imprudence, negligence, lack of foresight, or lack of skill without malice (People v. Pugay).

Mistake of Fact (Ignorantia Facti Excusat)

An honest and reasonable mistake of fact negates criminal intent (dolo). Under the doctrine of ignorantia facti excusat, an act done under an honest mistake of fact is not criminal if the actor would have been justified had the facts been as he reasonably believed them to be.

United States v. Ah Chong (15 Phil. 488, 19 March 1910) — Valid Mistake of Fact

Facts: Ah Chong, a cook, was asleep in an isolated room with a locked door. Awakened by someone forcing the door open in a crime-ridden area, he called out twice without response. Believing he was under attack by a robber, he struck the intruder with a kitchen knife, fatally wounding his roommate Pascual Gualberto.

Ruling: ACQUITTED. An honest and reasonable mistake of fact, without negligence, negates criminal intent (dolo). Under the facts as Ah Chong reasonably believed them to be, he was acting in lawful self-defense. Ignorantia facti excusat.

People v. Antonio Oanis and Alberto Galanta (74 Phil. 257, 27 July 1943) — Inexcusable Mistake of Fact

Facts: Police officers Oanis and Galanta were instructed to arrest escaped convict Anselmo Balagtas, with orders to shoot him if he resisted. Finding a man sleeping face down in a room, they immediately fired and killed him without verifying his identity. The victim turned out to be an innocent civilian, Serapio Tecson.

Ruling: CONVICTED of Murder. Mistake of fact is unavailable where the officers failed to exercise due diligence and reasonable precaution before opening fire. Their extreme recklessness precluded a finding of good faith.

Ivler v. Hon. Maria Rowena Modesto-San Pedro (G.R. No. 172716, 17 November 2010) — Single Crime of Reckless Imprudence

Ruling: Reckless imprudence under Article 365 is a single, distinct substantive quasi-offense, not a mere modality of committing felonies. Consequently, a person prosecuted and convicted for reckless imprudence resulting in slight physical injuries cannot be subsequently prosecuted for reckless imprudence resulting in homicide and damage to property arising from the same vehicular collision, as it violates Double Jeopardy.

3. Mala In Se vs. Mala Prohibita

Crimes in Philippine law are fundamentally classified into Mala In Se and Mala Prohibita:

- **Mala In Se (Crimes In Themselves):** Inherently immoral, evil, and contrary to natural justice (e.g., murder, robbery, rape, theft, estafa). Criminal intent (mens rea) is an essential element. Good faith and honest mistake of fact are valid defenses. Penalized in attempted, frustrated, and consummated stages, with modifying circumstances applied to graduate penalties.
- **Mala Prohibita (Prohibited Acts):** Wrong merely because prohibited by positive statute for public policy and social welfare (e.g., B.P. Blg. 22 Bouncing Checks, R.A. 10591 Illegal Firearms, Omnibus Election Code Gun Ban). Criminal intent is completely irrelevant; the only inquiry is whether the statutory prohibition was voluntarily breached. Good faith is NOT a defense, and only the consummated act is punished.

- Plunder (R.A. 7080): In *Estrada v. Sandiganbayan* (G.R. No. 148560), the Supreme Court ruled that Plunder is *Malum In Se* because its predicate acts (bribery, malversation, extortion, graft) are inherently corrupt and require proof of criminal intent.
- Bouncing Checks (B.P. 22): In *Lozano v. Martinez* (G.R. No. L-63419) and *Magno v. CA* (G.R. No. 96132), the Court ruled that B.P. 22 is *Malum Prohibitum* because the gravamen is the issuance of a worthless check that impairs the commercial integrity of the banking system, regardless of fraudulent intent.
- Crimes Involving Moral Turpitude: In *Teves v. COMELEC* (G.R. No. 180363), the Court defined moral turpitude as an act of baseness, vileness, or depravity in private and social duties contrary to the accepted and customary rule of right.

4. Criminal Liability & Doctrine of Proximate Cause (Article 4, Par. 1)

Under Article 4, Paragraph 1 of the RPC, criminal liability is incurred by any person committing a felony although the wrongful act done be different from that which he intended.

Doctrine of Proximate Cause: He who is the cause of the cause is the cause of the evil caused (*El que es causa de la causa es causa del mal causado*). Proximate cause is that cause which, in natural and continuous sequence, unbroken by any efficient intervening cause, produces the injury and without which the result would not have occurred (*U.S. v. Brobst*; *People v. Mananquil*; *People v. Iligan*; *People v. Albuquerque*; *Yadao v. People*).

The Three Types of Aberrations in Execution

- 1. *Praeter Intentionem* (Injurious result greater than intended): The perpetrator intends an unlawful harm, but the actual consequence is far graver than what was contemplated due to unexpected physical conditions or bodily frailties of the victim. This constitutes an Ordinary Mitigating Circumstance under Article 13, Paragraph 3 of the RPC (*U.S. v. Brobst*; *People v. Mananquil*; *People v. Iligan*).
- 2. *Aberratio Ictus* (Mistake in the Blow): The offender aims at a specific intended victim, but due to poor aim, deflection, or accidental movement, strikes and injures a third person. This is penalized as a Complex Crime under Article 48 of the RPC, imposing the penalty for the most serious felony in its maximum period (*People v. Adriano*, G.R. No. 205228; *People v. Bendecio*; *People v. Guillen*).
- 3. *Error in Personae* (Mistake in Identity): The offender intends to commit a crime against person A, but mistakenly believes person B is person A, and intentionally inflicts injury upon person B. Governed by Article 49 of the RPC, imposing the penalty for the crime intended or crime committed, whichever is lower, in its maximum period (*People v. Sabalones*; *People v. Hilario*).

5. Impossible Crimes (Article 4, Par. 2 & Article 59, RPC)

An Impossible Crime is an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.

- Requisites of an Impossible Crime: (1) The act performed would be an offense against persons (e.g., Homicide, Murder) or property (e.g., Theft, Robbery); (2) Evil intent / *Mens rea* is present; (3) Accomplishment is inherently impossible (legally or physically) or the means employed are inadequate/ineffectual; (4) The act performed does not constitute another completed felony under the RPC.
- Legal Impossibility: Occurs when the intended act, even if completed, does not constitute a crime under the law (e.g., attempting to steal one's own property; *People v. Balmores*, 85 Phil. 493).
- Physical Impossibility: Occurs when extraneous circumstances unknown to the actor prevent the consummation of the crime against person or property (e.g., firing into an empty bed where the intended victim was believed to be

sleeping — *Intod v. CA*, 215 SCRA 52; or stealing an unfunded check where no money could be drawn — *Jacinto v. People*, G.R. No. 162540).

- Penalty for Impossible Crimes (Art. 59): Arresto mayor or fine ranging from 200 to 500 pesos (as amended by R.A. 10951), determined by the court based on the social danger and moral depravity of the actor (Positivist school).

6. Stages of Execution of Felonies (Articles 6 and 7, RPC)

Article 6 of the Revised Penal Code establishes three stages in the execution of intentional felonies:

- **Attempted Stage:** The offender begins the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance. If the actor voluntarily desists before performing all acts of execution, he is absolved from attempted liability, unless the acts already performed constitute an independent completed offense (*People v. Lamahang*, 61 Phil. 703).
- **Frustrated Stage:** The offender performs all the acts of execution which should produce the felony as a consequence, but the crime nevertheless is not produced by reason of causes independent of the will of the perpetrator (e.g., timely medical intervention saved the mortal wound; *U.S. v. Eduave*, 36 Phil. 209; *People v. Borinaga*; *People v. Sy Pio*).
- **Consummated Stage:** All the elements necessary for its execution and accomplishment are present in the actual commission.

Stage Determination in Specific Crimes

- **Theft — Doctrine of No Frustrated Theft:** In the landmark En Banc ruling in *Aristotel Valenzuela v. People* (G.R. No. 160188), the Supreme Court ruled that in Philippine law, there is NO FRUSTRATED THEFT. Unlawful taking (asportation) is the complete consummation of theft. Once the offender acquires physical control and possession of the chattel without consent, theft is consummated, even if intercepted at the exit gate (overruling *People v. Dino*).
- **Rape:** In *People v. Campuhan* (329 SCRA 270) and *People v. Orita* (184 SCRA 105), the Court established that the slightest penetration of the labia majora or pudenda by the penis consummates rape. Mere touching without labial entry is attempted rape or acts of lasciviousness.
- **Robbery:** In *People v. Salvilla* (184 SCRA 671), once personal property is seized with violence or intimidation, robbery is consummated even if the robbers are surrounded inside the building and cannot carry the loot away.
- **Homicide and Murder:** If a mortal wound is inflicted and the victim survives solely due to medical care, it is Frustrated. If a non-mortal wound is inflicted or the actor is prevented from continuing, it is Attempted (*People v. Kalalo*; *Guzman v. People*).

7. Conspiracy and Proposal to Commit a Felony (Article 8, RPC)

Conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it. Proposal exists when the person who has decided to commit a felony proposes its execution to some other person or persons.

- **General Rule:** Conspiracy and proposal are NOT punishable as independent crimes because they are preparatory acts.
- **Exception:** Punishable only when expressly provided by law: Conspiracy to commit Treason (Art. 115), Conspiracy/Proposal to commit Rebellion or Coup d'etat (Art. 136), Conspiracy/Proposal to commit Sedition (Art. 141), Monopolies and Combinations (Art. 186), and Brigandage (Art. 306).

- Conspiracy as a Manner of Incurring Liability (Collective Responsibility): Once conspiracy is proven, the act of one is the act of all. All conspirators are liable as co-principals regardless of who struck the fatal blow (People v. Peralta, 25 SCRA 759; Quidet v. People; People v. Belmonte; People v. Lago).

8. Classification of Felonies by Gravity (Article 9, RPC) & Light Felonies (Article 7)

- Grave Felonies: Those to which the law attaches capital punishment or afflictive penalties in any of their periods (Reclusion perpetua, Reclusion temporal, Prision mayor, or Fine exceeding 1,200,000 pesos under R.A. 10951). Punishable at all stages of execution.
- Less Grave Felonies: Those which the law punishes with correctional penalties in their maximum period (Prision correccional, Arresto mayor, Destierro, or Fine between 40,000 and 1,200,000 pesos). Punishable at all stages.
- Light Felonies: Infractions punishable with Arresto menor or Fine not exceeding 40,000 pesos. Under Article 7, light felonies are punishable ONLY when consummated, EXCEPT those committed against persons or property (e.g., slight physical injuries, minor theft), which are punishable even when attempted or frustrated.

9. Supplementary Application of the RPC to Special Laws (Article 10, RPC)

Article 10 provides that offenses punishable under special laws are not subject to the provisions of the RPC, but the Code shall be supplementary to such laws, unless the special law provides otherwise.

Ladonga v. People (G.R. No. 141066, 17 February 2005) — Supplementary Rule in B.P. 22

Ruling: The RPC applies suppletorily to special penal laws (like B.P. 22) when the special statute is silent on a general principle (such as conspiracy under Art. 8 or accomplice liability under Art. 18). An accused spouse who did not sign the bouncing check cannot be held liable as a conspirator without clear and convincing proof of active agreement and participation.

PART III: CIRCUMSTANCES WHICH AFFECT CRIMINAL LIABILITY (ARTICLES 11–15)

1. Justifying Circumstances (Article 11, RPC)

Justifying circumstances are those where the act of a person is in accordance with law, so that such person is deemed not to have transgressed the law and does not incur any criminal or civil liability (no crime, no criminal, no civil liability, except under Paragraph 4 where civil liability is borne by the persons benefited).

The Six Justifying Circumstances under Article 11

- 1. Self-Defense (Art. 11, Par. 1): Requires three indispensable requisites: (a) Unlawful Aggression on the part of the victim (the condition sine qua non; without it, self-defense cannot stand); (b) Reasonable necessity of the means employed to prevent or repel it (judged by the doctrine of 'stand ground when in the right' and the defender's physical state; U.S. v. Mack; People v. Sumicad); and (c) Lack of sufficient provocation on the part of the person defending himself. If the aggressor retreats and the danger ceases, shooting the fleeing person is no longer self-defense (People v. Alconga, 78 Phil. 366; People v. Damitan; Ganal v. People; Velasquez v. People).

- Defense of Honor: Embraced within self-defense. A woman has the lawful right to kill to protect herself from rape or sexual assault (People v. Luague, 62 Phil. 504; People v. Jaurigue, 76 Phil. 174).
- Defense of Property: Lawful only when coupled with an attack on the person of the owner. Killing a thief solely to protect personal chattel without danger to life is unjustified (People v. Apolinar, 38 O.G. 2870; People v. Narvaez, 121 SCRA 389 - shooting unarmed persons dismantling a fence is incomplete self-defense).
- Battered Woman Syndrome (BWS): Recognized in People v. Genosa (419 SCRA 537) and codified under Section 26 of Republic Act No. 9262. An abused woman suffering from BWS who kills her batterer incurs NO criminal and NO civil liability.
- 2. Defense of Relatives (Art. 11, Par. 2): Requisites: (a) Unlawful aggression; (b) Reasonable necessity of the means employed; (c) In case the provocation was given by the person attacked, that the defender took no part therein. Covers: spouse, ascendants, descendants, legitimate, natural, or adopted brothers/sisters, and relatives by affinity in the same degrees, and consanguinity within the 4th civil degree (U.S. v. Esmedia, 17 Phil. 260).
- 3. Defense of Strangers (Art. 11, Par. 3): Requisites: (a) Unlawful aggression; (b) Reasonable necessity of the means employed; (c) The defender is NOT induced by revenge, resentment, or other evil motive (People v. Olarbe, G.R. No. 227421; People v. Toring; Masipequina v. CA).
- 4. State of Necessity / Avoidance of Greater Evil (Art. 11, Par. 4): Requisites: (a) Evil sought to be avoided actually exists; (b) Injury feared be greater than that done to avoid it; (c) No other practical and less harmful means of preventing it. This is the ONLY justifying circumstance where civil liability exists, paid by persons benefited (Art. 101, RPC). In Ty v. People (439 SCRA 220), issuing bouncing checks to pay a hospital bill was held NOT justified under state of necessity.
- 5. Fulfillment of Duty or Lawful Exercise of Right or Office (Art. 11, Par. 5): Requisites: (a) Offender acted in the performance of a duty or in the lawful exercise of a right or office; (b) Injury caused or offense committed be the necessary consequence of the due performance of such duty or right (People v. Delima, 46 Phil. 738; People v. Belbes; Cabanlig v. Sandiganbayan).
- 6. Obedience to an Order Issued by a Superior (Art. 11, Par. 6): Requisites: (a) An order has been issued by a superior; (b) Such order is for a lawful purpose; (c) Means used by subordinate to carry out order were lawful. If the order is manifestly illegal on its face, the subordinate who executes it is criminally liable (People v. Beronilla; Tabuena v. Sandiganbayan; People v. Oanis).

2. Exempting Circumstances (Article 12, RPC)

Exempting circumstances are those where the act is criminal, but the law exempts the perpetrator from criminal liability due to complete absence of voluntariness (freedom, intelligence, or intent). Civil liability remains (there is a crime and civil liability, but NO criminal liability).

The Six Exempting Circumstances under Article 12

- 1. Insanity or Imbecility (Art. 12, Par. 1): An imbecile is completely exempt at all times. An insane person is exempt unless he acted during a lucid interval. The defense must prove complete deprivation of intelligence and reason at the precise moment of the commission of the crime (M'Naghten rule; People v. Bonoan, 64 Phil. 87; People v. Ambal; People v. Dungo; People v. Valledor; People v. Pantoja).
- 2. Somnambulism / Hypnotism: Acting in a state of sleepwalking where volition is completely absent (People v. Taneo, 58 Phil. 255 - accused who wounded wife and killed guest during a dream was completely exempt).
- 3. Minority / Child in Conflict with the Law (R.A. 9344 as amended by R.A. 10630): (a) A child 15 years old and below is absolutely exempt from criminal liability and subjected to mandatory community-based intervention; (b) A child above 15 but below 18 years old is EXEMPT unless the prosecution proves beyond reasonable doubt that the minor acted WITH DISCERNMENT. If with discernment, the minor is subjected to diversion or automatic suspension of sentence (Art. 80, RPC; Guevarra v. Almodovar; People v. Doquena; Jose v. People; People v. Jacinto).

- 4. Accident (Art. 12, Par. 4): Requisites: (a) Performing a lawful act; (b) With due care; (c) Causes an injury by mere accident; (d) Without fault or intention of causing it (People v. Bindoy, 56 Phil. 15; U.S. v. Tanedo; Pomoy v. People; People v. Macal).
- 5. Compulsion of Irresistible Force & Impulse of Uncontrollable Fear (Art. 12, Pars. 5 & 6): Force involves physical coercion by a third party that cannot be overcome. Fear involves moral coercion or intimidation of an equal or greater injury. Duress must be real, imminent, and continuous (U.S. v. Caballeros, 4 Phil. 350; People v. Anod; People v. Dansal).
- 6. Insuperable or Lawful Cause (Art. 12, Par. 7): Prevented from performing a duty enjoined by law by an insuperable or lawful impediment (U.S. v. Vicentillo, 19 Phil. 118; People v. Bandian).

3. Mitigating Circumstances (Article 13, RPC)

Mitigating circumstances are those which do not free the actor from criminal liability, but serve to reduce the penalty imposable by law.

- Privileged Mitigating Circumstances: Reduce the penalty by 1 or 2 degrees (e.g., Incomplete Justifying/Exempting under Art. 69; Minority under Art. 68). They cannot be offset by aggravating circumstances.
- Ordinary Mitigating Circumstances: Reduce the penalty to its minimum period under Article 64 of the RPC. They can be offset by generic aggravating circumstances.

The Ten Mitigating Circumstances under Article 13

- 1. Incomplete Justifying or Exempting Circumstances (Art. 13, Par. 1): When all the requisites necessary to justify or exempt are not attendant, provided the majority or the indispensable requisite is present (Art. 69, RPC; People v. Narvaez).
- 2. Under 18 or Over 70 Years of Age (Art. 13, Par. 2): Privileged mitigating for minors under 18; Ordinary mitigating for senior citizens over 70 years old.
- 3. Praeter Intentionem (Art. 13, Par. 3): Lack of intention to commit so grave a wrong as that committed, demonstrated by manifest lack of proportion between the means employed and the resulting injury (People v. Ural, 56 SCRA 138; People v. Reyes).
- 4. Sufficient Provocation or Threat (Art. 13, Par. 4): Must be sufficient (adequate to excite a person to commit wrong), originate from the offended party, and immediately precede the criminal act (People v. Leonor, 305 SCRA 285; Miranda v. People, G.R. No. 234528; Urbano v. People; Oriente v. People; People v. Racal).
- 5. Immediate Vindication of a Grave Offense (Art. 13, Par. 5): Vindication of a grave offense committed against the offender, his spouse, ascendants, descendants, brothers, or sisters. Proximity of time and psychological impact are considered (U.S. v. Ampar, 37 Phil. 201; People v. Pajares; Napone, Jr. v. People).
- 6. Passion or Obfuscation (Art. 13, Par. 6): Act produced by an impulse so powerful as naturally to have produced passion or obfuscation, arising from lawful and moral sentiments and not from unlawful resentment (U.S. v. Hicks, 14 Phil. 217; U.S. v. De la Cruz).
- 7. Voluntary Surrender & Confession of Guilt (Art. 13, Par. 7): Voluntary surrender requires spontaneity before actual arrest. Confession of guilt requires a plea of guilty made in open court prior to the presentation of prosecution evidence (People v. Placer, G.R. No. 181753; De Vera v. De Vera; People v. Quijano).
- 8. Physical Defect (Art. 13, Par. 8): The offender is deaf, mute, blind, or suffering from a physical defect restricting means of action or communication.
- 9. Illness Diminishing Will-Power (Art. 13, Par. 9): Illness which diminishes the exercise of will-power of the offender without depriving him of consciousness of his acts (People v. Javier, 311 SCRA 576).
- 10. Analogous Circumstances (Art. 13, Par. 10): Any other circumstance of similar nature (e.g., extreme poverty in theft, voluntary restitution of stolen goods; Santa v. People, 353 SCRA 250; Eduarte v. People).

4. Aggravating Circumstances (Article 14, RPC)

Aggravating circumstances are those which, if attendant in the commission of the crime, serve to increase the penalty without exceeding the statutory maximum or qualify the crime to a graver offense.

The Twenty-One Aggravating Circumstances under Article 14

- 1. Taking Advantage of Public Position: Offender used the influence, prestige, or authority of his public office to facilitate the crime (People v. Ordiales, G.R. No. L-30956; People v. Torrida).
- 2. Contempt or Insult to Public Authorities: Crime committed in the presence of a public authority engaged in the discharge of duties (People v. Rodil, G.R. No. L-35156; U.S. v. Rodriguez).
- 3. Disrespect of Rank, Age, Sex, or Dwelling: Offense committed with insult to rank/age/sex, or in the dwelling of the offended party without provocation (People v. Daniel; People v. Ambis; People v. Kalipayan, G.R. No. 229829).
- 4. Abuse of Confidence or Obvious Ungratefulness: Confidence must be immediate and personal; ungratefulness must be manifest (People v. Verdad; People v. Syou Hu).
- 5. Palace of Chief Executive or Place of Worship: Committed in Malacañang, in presence of Chief Executive, or in a place dedicated to religious worship (People v. Abrazaldo, G.R. No. 124392).
- 6. Nighttime, Uninhabited Place, or Band (Cuadrilla): Nighttime sought to facilitate crime or prevent detection. Band = more than three armed malefactors acting together (People v. Bermas; People v. Matbagon; People v. Arpa).
- 7. On Occasion of Calamity or Misfortune: Taking advantage of conflagration, shipwreck, earthquake, epidemic, or other disaster (U.S. v. Rodriguez).
- 8. Aid of Armed Men or Means to Insure Impunity: Calling upon armed men to intimidate the victim or prevent resistance.
- 9. Recidivism (Reincidencia): At the time of trial for one crime, the offender was previously convicted by final judgment of another crime embraced in the same Title of the RPC (People v. Real; People v. Ibasco).
- 10. Reiteracion (Habituality): The offender has been previously punished for an offense to which the law attaches an equal or greater penalty, or for two or more crimes with lighter penalties (People v. Cajara).
- 11. Price, Reward, or Promise: Affects both the giver (principal by inducement) and the receiver (principal by direct participation) (People v. Hipolito).
- 12. Inundation, Fire, Poison, Explosion, Stranding: Committed by means involving great waste and ruin.
- 13. Evident Premeditation: Requisites: (a) Time when offender determined to commit crime; (b) Act indicating cling to determination; (c) Sufficient lapse of time for cool reflection (People v. Nabual; U.S. v. Manalinde).
- 14. Craft, Fraud, or Disguise: Craft involves cunning; Fraud involves deceit; Disguise involves concealing identity (People v. Quiñanola).
- 15. Superior Strength or Means to Weaken Defense: Deliberately using physical disparity or overpowering numbers to ensure execution (U.S. v. Devela).
- 16. Treachery (Alevosia): Offender commits crimes against persons employing means, methods, or forms tending directly and specially to insure its execution without risk to himself arising from the defense victim might make (People v. Sangalang; People v. Cañete; People v. Dela Cruz, G.R. No. 227997; People v. Monte).
- 17. Ignominy Added to Natural Effects: Employing means which add moral shame, humiliation, or dishonor to the victim (People v. Torrefiel; People v. Alfanta; People v. Fuertes).
- 18. Unlawful Entry: Entrance effected by a way NOT intended for the purpose (e.g., through window, roof, chimney; People v. Puda; People v. Bondoy).
- 19. Breaking Wall, Roof, Floor, Door, or Window: Physical breaking as a means to enter and commit the crime.
- 20. Aid of Minors under 15 or Use of Motor Vehicles: Use of motorized watercraft, aircraft, or motor vehicle to facilitate escape (R.A. 5438).

- 21. Cruelty: Wrong done deliberately augmented by causing other unnecessary physical pain and agony (People v. Sitchon; People v. Fernandez; People v. Cortes; People v. Bernabe).

5. Alternative Circumstances (Article 15, RPC)

Alternative circumstances are those which must be taken into consideration as aggravating or mitigating according to the nature and effects of the crime and other conditions attending its commission.

- Relationship: Mitigating in crimes against property (theft, estafa, malicious mischief); Aggravating in crimes against persons (homicide, murder, parricide, physical injuries) where the victim is of higher degree or equal (People v. Orilla; People v. Lomaque).
- Degree of Instruction and Education: Low degree of education is mitigating in crimes against property and physical injuries; NOT mitigating in crimes against chastity, treason, murder, or crimes inherently evil (People v. Macatanda; People v. Baltazar; People v. Dejaresco).
- Intoxication: Mitigating if NOT habitual and NOT intentional (accidental intoxication); Aggravating if habitual or intentional (drinking to bolster courage to commit crime) (People v. Camano; People v. Mondigo; People v. Cortes).

6. Absolutory Causes and Special Defenses

- Instigation vs. Entrapment: Entrapment is a lawful law enforcement trap to catch a criminal in the act (valid). Instigation is when law enforcers originate the criminal idea and induce an innocent person to commit the crime (ABSOLUTORY CAUSE leading to acquittal; People v. Lua Chu, 56 Phil. 44; U.S. v. Phelps; People v. Bartolome, G.R. No. 191726).
- Spontaneous Desistance (Art. 6, Par. 3): Desistance in the attempted stage before all acts of execution are performed absolves the actor from attempted felony liability, provided no other independent crime was completed.
- Death or Physical Injuries under Exceptional Circumstances (Art. 247): A legally married person who surprises his/her spouse in the act of sexual intercourse with another person and kills either or both suffers only destierro (absolutory of criminal imprisonment).
- Relationship in Property Crimes (Art. 332): No criminal, but only civil liability for theft, swindling, or malicious mischief between spouses, ascendants, descendants, brothers/sisters living together.
- Battered Woman Syndrome (R.A. 9262, Sec. 26): A battered woman suffering from BWS incurs NO criminal and NO civil liability for killing the batterer (People v. Genosa).

PART IV: PERSONS CRIMINALLY LIABLE (ARTICLES 16–20)

1. Classification of Persons Liable for Felonies (Article 16, RPC)

Article 16 of the Revised Penal Code establishes the tiers of criminal participation based on the degree of causal contribution and culpability:

- In Grave and Less Grave Felonies: Principals, Accomplices, and Accessories are all criminally liable.
- In Light Felonies: ONLY Principals and Accomplices are criminally liable. Accessories are NOT liable for light felonies.

2. Principals (Article 17, RPC)

Under Article 17 of the Revised Penal Code, there are three categories of principals:

- 1. Principals by Direct Participation (Art. 17, Par. 1): Those who take a direct part in the execution of the criminal act. Requisites: (a) Active participation in the criminal resolution (conspiracy); (b) Performance of overt physical acts of execution (U.S. v. Diris, 26 Phil. 133).
- 2. Principals by Inducement (Art. 17, Par. 2): Those who directly force or induce others to commit it. Two Modes: (a) By Price, Promise, or Reward; (b) By Command or Irresistible Influence. Requisites: (1) Inducement was made directly to procure the commission; (2) Inducement was the determining cause; (3) The crime was actually committed by the induced party (People v. Ong Chiat Lay, 60 Phil. 788; U.S. v. Indanan, 24 Phil. 203; People v. Kichi Omine, 61 Phil. 609).
- 3. Principals by Indispensable Cooperation (Art. 17, Par. 3): Those who cooperate in the commission of the offense by another act without which it would not have been accomplished. The act performed must be indispensable to the realization of the felony (People v. Montealegre, 161 SCRA 700 - holding the victim while another stabs him; People v. Simbra, 117 SCRA 242).

3. Accomplices (Article 18, RPC)

Accomplices are those persons who, not being principals, cooperate in the execution of the offense by previous or simultaneous acts.

- Requisites of Accomplice Liability: (1) Concurrence of will and knowledge of the criminal design of the principal; (2) Cooperation in the execution by previous or simultaneous acts; (3) Causal relation between acts of the accomplice and commission of the crime, but the cooperation is DISPENSABLE (not indispensable).
- Distinction from Principals: An accomplice knows the criminal intent but does not participate in the conspiracy, and his act is not indispensable to the accomplishment of the crime (People v. Nierra, 96 Phil. 1; People v. Doble, 114 SCRA 131; People v. Doctolero, 193 SCRA 632).

4. Accessories (Articles 19 and 20, RPC)

Accessories are those who, having knowledge of the commission of the crime, and without having participated therein as principals or accomplices, take part subsequent to its commission in any of the following manners:

- Paragraph 1: Profiting themselves or assisting the offender to profit by the effects of the crime. Note: The Anti-Fencing Law of 1979 (P.D. 1612) penalizes buying, receiving, or possessing stolen items as a separate special offense.
- Paragraph 2: Concealing or destroying the body of the crime (corpus delicti) or the effects or instruments thereof, in order to prevent its discovery (People v. Talingdan, 84 SCRA 19; Presidential Decree No. 1829 on Obstruction of Justice).
- Paragraph 3: Harboring, concealing, or assisting in the escape of the principal, whenever the accessory acts with abuse of his public functions, or whenever the author of the crime is guilty of Treason, Parricide, Murder, Attempt on the Life of the Chief Executive, or is known to be habitually guilty of some other crime (Vino v. People, 178 SCRA 626).

5. Exemption of Relatives as Accessories (Article 20, RPC)

The penalties prescribed for accessories shall not be imposed upon those who are such with respect to their spouses, ascendants, descendants, legitimate, natural, and adopted brothers and sisters, or relatives by affinity within the same degrees.

CRITICAL EXCEPTION TO ARTICLE 20 EXEMPTION

The exemption of relatives under Article 20 does NOT apply to accessories falling within Article 19, Paragraph 1

(those who profit themselves or assist the offender to profit by the effects of the crime).

Rationale: Blood relationship and natural affection excuse protecting a relative from discovery or arrest (Pars. 2 and 3), but never justify financial enrichment from the fruits of a crime.

PART V: PENALTIES (ARTICLES 21–88)

1. General Principles, Constitutional Limitations, and Purposes of Penalties

A penalty is the suffering inflicted by the State for the transgression of a law. Under Article 21 of the RPC, no felony shall be punishable by any penalty not prescribed by law prior to its commission.

- Constitutional Limitations: (1) Due Process of Law; (2) Prohibition against Ex Post Facto Laws and Bills of Attainder; (3) Prohibition against Cruel, Degrading, or Inhuman Punishments (Art. III, Sec. 19(1), 1987 Const.); (4) Excessive Fines Clause.
- Death Penalty Jurisprudence & Suspension: Death penalty was authorized under R.A. 7659 (Heinous Crimes Act) and upheld in *People v. Echegaray* (267 SCRA 682). Subsequently, Republic Act No. 9346 (enacted June 24, 2006) prohibited the imposition of the death penalty, replacing it with Reclusion Perpetua without eligibility for parole under the Indeterminate Sentence Law.

2. Classification and Scale of Penalties (Articles 25 and 26, RPC)

Penalties are classified into Principal Penalties (expressly imposed by the court in the judgment) and Accessory Penalties (deemed implicitly attached to principal penalties by operation of law):

- Capital Punishment: Death (Imposition prohibited by R.A. 9346).
- Afflictive Penalties: (1) Reclusion Perpetua (20 years and 1 day to 40 years); (2) Reclusion Temporal (12 years and 1 day to 20 years); (3) Perpetual Absolute or Special Disqualification; (4) Temporary Absolute or Special Disqualification; (5) Prision Mayor (6 years and 1 day to 12 years); (6) Fines exceeding 1,200,000 pesos under R.A. 10951.
- Correctional Penalties: (1) Prision Correccional (6 months and 1 day to 6 years); (2) Arresto Mayor (1 month and 1 day to 6 months); (3) Suspension; (4) Destierro (6 months and 1 day to 6 years banishment within 25km to 250km radius); (5) Fines between 40,000 and 1,200,000 pesos under R.A. 10951.
- Light Penalties: (1) Arresto Menor (1 day to 30 days); (2) Public Censure; (3) Fines not exceeding 40,000 pesos under R.A. 10951.

Distinction between Reclusion Perpetua and Life Imprisonment

- Reclusion Perpetua is prescribed exclusively by the Revised Penal Code. It has a fixed duration of 20 years and 1 day to 40 years, is an indivisible penalty, carries inherent accessory penalties (Civil Interdiction and Perpetual Absolute Disqualification under Art. 40), and is eligible for executive pardon after serving 30 years (Art. 27, RPC).
- Life Imprisonment is prescribed by Special Penal Laws (e.g., R.A. 9165, R.A. 6539). It has no fixed duration (spans natural life), carries no inherent accessory penalties unless expressly provided by statute, and pardon eligibility depends on executive clemency rules.

3. Duration and Effects of Specific Penalties (Articles 27–45, RPC)

- Destierro (Arts. 27, 87): Penalty banishing the convict from entering the place designated in the sentence, nor within the specified radius (25 km to 250 km). Imposed in: (a) Art. 247 death/injuries under exceptional circumstances; (b) Art. 334 concubine; (c) Art. 284 bond to keep the peace failure.
- Preventive Imprisonment Credit (Art. 29, as amended by R.A. 10592): Offenders who undergo preventive imprisonment shall be credited in the service of their sentence with the FULL TIME (100%) of preventive imprisonment if they agree in writing to abide by the same disciplinary rules as convicted prisoners; or 4/5 (80%) if they do not agree.
- Civil Interdiction (Art. 34): Deprives the offender of parental authority, marital authority, guardianship, right to manage property, and right to dispose of property by inter vivos acts.
- Subsidiary Imprisonment (Art. 39, as amended by R.A. 10951): Incurred by an insolvent convict who fails to pay a fine, served at the rate of one day for each amount equivalent to the highest minimum wage prevailing in the nation.

4. Application, Graduation, and Computation of Penalties (Articles 46–77)

The Revised Penal Code provides a mathematical and graduated scale for lowering penalties based on stages of execution (Art. 50–57) and degree of participation:

- For Principals: Consummated stage receives the penalty prescribed by law; Frustrated stage receives the penalty next lower in degree (1 degree lower); Attempted stage receives the penalty 2 degrees lower.
- For Accomplices: Consummated stage receives the penalty next lower in degree (1 degree lower); Frustrated stage receives the penalty 2 degrees lower; Attempted stage receives the penalty 3 degrees lower.
- For Accessories: Consummated stage receives the penalty 2 degrees lower; Frustrated stage receives the penalty 3 degrees lower; Attempted stage receives the penalty 4 degrees lower.

Complex Crimes, Special Complex Crimes, and Delito Continuado

Under Article 48 of the RPC, when a single act constitutes two or more grave or less grave felonies (Compound Crime / Delito Compuesto), or when an offense is a necessary means for committing the other (Complex Crime Proper / Delito Complejo), the penalty for the most serious crime shall be imposed in its MAXIMUM PERIOD.

- Compound Crime: A single act produces multiple grave/less grave crimes (e.g., throwing a single grenade that kills three persons and wounds five — *People v. Toling*, 62 SCRA 17; *People v. Guillen*).
- Complex Crime Proper: One crime is a necessary means to commit another (e.g., Estafa through Falsification of Public Documents). In *Enrile v. Salazar* (186 SCRA 217), the Court reaffirmed that Rebellion cannot be complexed with common crimes like murder or arson when committed in furtherance of rebellion.
- Special Complex / Composite Crimes: Specific offenses created and penalized as a single indivisible composite felony by statute (e.g., Robbery with Homicide under Art. 294(1); Rape with Homicide under Art. 266-B). Article 48 does NOT apply to special complex crimes (*People v. Salvilla*, 184 SCRA 671; *People v. Valdez*, 304 SCRA 611).
- Continued Crime (Delito Continuado): Plurality of acts performed with a single criminal resolution, violating the same penal provision against the same subject matter, treated as a single crime (*People v. De Leon*, 49 Phil. 437).

Multiple Offenders: Recidivism, Reiteracion, Habitual Delinquency, and Quasi-Recidivism

- Recidivism (Reincidencia - Art. 14, Par. 9): At the time of trial for one crime, convicted by final judgment of another crime embraced in the same Title of the RPC. Generic aggravating circumstance.

- Reiteracion (Habituality - Art. 14, Par. 10): Offender previously punished for an offense to which law attaches an equal or greater penalty, or two or more lighter offenses in different Titles of the RPC. Generic aggravating circumstance.
- Habitual Delinquency (Art. 62, Par. 5): Within 10 years from last release or conviction, found guilty a THIRD time or oftener of F-L-E-T-S: Falsification, Robbery, Estafa, Theft, or Serious/Less Serious Physical Injuries. Imposes an ADDITIONAL fixed graduated penalty ranging from 3 years to 30 years imprisonment (People v. Masonson; People v. Tolentino).
- Quasi-Recidivism (Art. 160): Any person who commits a felony after having been convicted by final judgment, BEFORE beginning to serve sentence, or WHILE serving the same. SPECIAL aggravating circumstance: Cannot be offset by any mitigating circumstance; maximum period imposed automatically (People v. Layson, 31 SCRA 70; People v. Peralta).
- Three-Fold Rule (Art. 70): The maximum duration of the convict's sentence shall not exceed three times the most severe of the penalties imposed upon him, and in no case shall exceed forty (40) years.

5. The Indeterminate Sentence Law (ISLAW — Act No. 4103, as amended)

The Indeterminate Sentence Law mandates courts to impose an indeterminate sentence composed of a MINIMUM TERM and a MAXIMUM TERM in all convictions for offenses punishable by imprisonment exceeding one year.

- For RPC Offenses: The Maximum Term is fixed by applying the statutory rules on mitigating and aggravating circumstances (Art. 64, RPC) to determine the proper period (minimum, medium, or maximum). The Minimum Term is fixed within the range of the penalty NEXT LOWER IN DEGREE to that prescribed by the RPC for the felony, without considering modifying circumstances (People v. Simon, 234 SCRA 555; Rosa Lim v. People, G.R. No. 130038; People v. Gabres, 267 SCRA 581; People v. Lampaza, 319 SCRA 112; People v. Ducosin, 59 Phil. 109).
- For Special Penal Laws: The Maximum Term shall not exceed the maximum penalty fixed by the special statute, and the Minimum Term shall not be less than the minimum penalty prescribed by the statute.
- ISLAW Disqualifications: (1) Convicted of offenses punishable with death or life imprisonment / reclusion perpetua; (2) Convicted of Treason, Conspiracy/Proposal to commit Treason, Misprision of Treason, Rebellion, Sedition, or Espionage; (3) Convicted of Piracy; (4) Habitual Delinquents; (5) Persons who escaped from confinement or evaded sentence; (6) Violators of conditional pardon; (7) Those whose maximum term does not exceed one year.

6. The Probation Law of 1976 (P.D. 968, as amended by R.A. 10707)

Probation is a disposition under which a defendant, after conviction and sentence, is released subject to conditions imposed by the court and to the supervision of a probation officer. Application must be filed with the trial court within the 15-day period for perfecting an appeal.

- Qualifications: Sentenced to imprisonment of not more than 6 years.
- R.A. 10707 Amendment: When a judgment of conviction imposing a non-probationable penalty is appealed, and the appellate court modifies the penalty to one that is probationable (6 years or less), the defendant may apply for probation with the trial court.
- Disqualifications under P.D. 968: (a) Sentenced to serve a maximum term of imprisonment of more than 6 years; (b) Convicted of any crime against national security; (c) Previously convicted by final judgment of an offense punished by imprisonment of more than 6 months and 1 day and/or fine of more than P1,000; (d) Once placed on probation; (e) Already serving sentence at the time substantive application is filed (Francisco v. CA, 243 SCRA 384; Yusi v. Morales; Cal v. CA; Llamado v. CA; Baclayon v. Mutia; Bala v. Martinez; Salgado v. CA).

PART VI: EXTINCTION OF CRIMINAL LIABILITY (ARTICLES 89–99)

1. Total Extinction of Criminal Liability (Article 89, RPC)

Under Article 89 of the Revised Penal Code, criminal liability is totally extinguished by:

- 1. Death of the Convict: Extinguishes criminal liability at whatever stage of proceedings. Extinguishes civil liability *ex delicto* when death occurs before final judgment (People v. Bayotas, 236 SCRA 239; People v. Dela Cruz, G.R. No. 190610).
- 2. Service of the Sentence: Complete execution of the principal and accessory penalties imposed by the court.
- 3. Amnesty: A sovereign act of forgetfulness and oblivion granted by the President with the CONCURRENCE of a majority of all members of Congress (Art. VII, Sec. 19, 1987 Const.). It looks backward, applies to political offenses, and abolishes both the offense and the penalty (Barrioquinto v. Fernandez, 82 Phil. 642; People v. Patriarca, G.R. No. 135547; People v. Casido, G.R. No. 116512).
- 4. Absolute Pardon: An executive act of grace granted by the President after conviction by final judgment. It wipes out the penalty, but does NOT wipe out civil liability nor the fact of conviction (Flora v. Oximana, G.R. No. L-19745; Pelobello v. Palatino, 72 Phil. 441; Art. 23 & Art. 344, RPC).
- 5. Prescription of the Crime: The forfeiture of the right of the State to prosecute an offender due to the lapse of statutory time (Arts. 90 & 91, RPC; Act No. 3326 for Special Laws). The prescriptive period commences from the day the crime is discovered by the offended party, authorities, or agents, and is interrupted by the filing of the complaint or information in court.
- 6. Prescription of the Penalty: The forfeiture of the right of the State to execute a final judgment of sentence due to lapse of time (Arts. 92 & 93, RPC). Requisite: The convict must have EVADED service of sentence (escaped custody). The period runs from the day of evasion.
- 7. Marriage of the Offended Woman: In private crimes of rape, seduction, abduction, and acts of lasciviousness (Art. 344, RPC), a valid marriage between the offender and the victim extinguishes the criminal action and the penalty for the principal and co-principals.

Comprehensive Comparison: Amnesty vs. Absolute Pardon

- Nature of Grant: Amnesty is a public sovereign act granted to classes of persons guilty of political offenses (e.g., rebellion, coup d'etat). Pardon is a private act of executive grace granted to an individual convict for common crimes.
- Congressional Concurrence: Amnesty REQUIRES the concurrence of a majority of all members of Congress. Pardon does NOT require congressional concurrence.
- Stage of Application: Amnesty may be granted BEFORE or AFTER criminal prosecution or conviction. Pardon may be granted ONLY AFTER conviction by final judgment.
- Legal Effect on Guilt: Amnesty abolishes the offense and wipes away the memory of the crime as if never committed. Pardon extinguishes the penalty, but does NOT erase the guilt of the convict nor restore public office without express grant.
- Judicial Notice: Courts take judicial notice of presidential amnesty proclamations. Pardon must be pleaded and proved in evidence by the recipient.

Prescription Periods for Crimes and Penalties (Articles 90 and 92, RPC)

- Crimes punishable by Death and Reclusion Perpetua: Prescribe in twenty (20) years. Penalties of Death and Reclusion Perpetua prescribe in twenty (20) years.

- Crimes punishable by other Afflictive Penalties (Reclusion Temporal, Prision Mayor): Prescribe in fifteen (15) years. Penalties prescribe in fifteen (15) years.
- Crimes punishable by Correctional Penalties (Prision Correccional): Prescribe in ten (10) years, except for other correctional penalties which prescribe in five (5) years. Correctional penalties prescribe in ten (10) years (Arresto Mayor penalty prescribes in 5 years).
- Crimes punishable by Light Penalties (Arresto Menor): Prescribe in one (1) year (except simple slander and defamation which prescribe in 2 months). Light penalties prescribe in one (1) year.

2. Partial Extinction of Criminal Liability (Articles 94–99, RPC)

Partial extinction modifies or reduces the execution of the sentence without completely wiping out the judgment:

- 1. Conditional Pardon (Art. 95): An executive contract wherein the convict accepts conditions (e.g., never to commit another crime). Violation of conditional pardon results in rearrest under Art. 159, RPC or execution of remaining unserved sentence (In re Antonio Infante, G.R. No. 4164).
- 2. Commutation of Sentence (Art. 96): Change of the penalty to a less severe one (e.g., Reclusion Perpetua commuted to a fixed prison term).
- 3. Good Conduct Time Allowance (GCTA — Arts. 97–99, as amended by R.A. 10592): Deduction from the period of sentence for good behavior during imprisonment.
- 4. Special Allowance for Loyalty (Art. 98): Deduction of 1/5 of the period of sentence for prisoners who give themselves up within 48 hours after the passing of an earthquake, typhoon, or rebellion.
- 5. Parole: Release from imprisonment under supervision by the Board of Pardons and Parole after serving the minimum term of indeterminate sentence.

Landmark Jurisprudence on GCTA and R.A. 10592

Inmates of the New Bilibid Prison v. Secretary Leila M. De Lima (G.R. No. 212719, 25 June 2019)

Ruling: The Supreme Court En Banc unanimously held that Republic Act No. 10592, which increased Good Conduct Time Allowances (GCTA) for prisoners, **MUST BE APPLIED RETROACTIVELY** to all convicts, including those convicted of heinous crimes, in accordance with the fundamental prospectivity exception under Article 22 of the Revised Penal Code.

The implementing rules and regulations (IRR) attempting to make RA 10592 strictly prospective were declared null and void for violating Article 22 of the RPC.

PART VII: CIVIL LIABILITY ARISING FROM CRIMES (ARTICLES 100–113)

1. Concept and Nature of Civil Liability Ex Delicto (Article 100, RPC)

Article 100 of the Revised Penal Code establishes that every person criminally liable for a felony is also civilly liable. A crime has a dual character: (1) As an offense against the sovereign State for breach of public peace and order; (2) As a private wrong against the immediate victim causing material, moral, or physical injury (Chua v. Court of Appeals, 443 SCRA 142).

2. Persons Civilly Liable and Subsidiary Liability (Articles 100–103, RPC)

- Primary Civil Liability: Principals, Accomplices, and Accessories are primarily liable solidarily among themselves for their respective shares, and subsidiarily for the shares of other classes (Arts. 109 & 110, RPC). Direct perpetrators are immediately bound upon promulgation of conviction.
- Subsidiary Liability of Innkeepers & Tavernkeepers (Art. 102): Applies to innkeepers, tavernkeepers, and any other persons or corporations for crimes committed in their establishments, covering loss of or damage to personal effects of guests when notice was given and rules were followed.
- Subsidiary Liability of Employers in Industry (Art. 103): Employers, teachers, persons, and corporations engaged in any kind of industry are subsidiarily liable for felonies committed by their servants, pupils, workmen, or employees in the discharge of duties.
- Requisites for Employer Subsidiary Liability under Article 103: (1) The employer is engaged in an industry; (2) The employee committed the felony in the discharge of his official duties; (3) The employee is convicted by final judgment; (4) The employee is insolvent upon execution of civil judgment (Carpio v. Doroja, 180 SCRA 1; Basilio v. CA, 328 SCRA 341; Philippine Rabbit Bus Lines v. CA, 427 SCRA 526; Quinto v. Andres, 453 SCRA 511).

3. What Civil Liability Includes (Articles 104–111, RPC)

Under Article 104 of the Revised Penal Code, civil liability established in Articles 100 to 103 includes:

- 1. Restitution (Art. 105): Restitution of the thing itself must be made whenever possible, with allowance for deterioration or diminution of value, even though the property be found in the possession of a third person who acquired it by lawful means, save where property was acquired in good faith at a public auction.
- 2. Reparation of the Damage Caused (Art. 106): The court determines the amount of damage, taking into consideration the price of the thing and its special sentimental value to the injured party.
- 3. Indemnification for Consequential Damages (Art. 107): Includes not only those caused to the injured party, but also those suffered by his family or by a third person by reason of the crime (Heirs of Raymundo Castro v. Bustos, 27 SCRA 327).

Landmark Supreme Court Damage Matrix: People v. Jugueta (G.R. No. 202124, April 5, 2016)

In the landmark En Banc decision in People v. Jugueta, the Supreme Court laid down comprehensive, uniform rules and standardized amounts for civil indemnity, moral damages, and exemplary damages in crimes resulting in death or injuries:

- Crimes where the death penalty is prescribed by law but reduced to Reclusion Perpetua under R.A. 9346 (e.g., Qualified Rape, Murder with extreme treachery): PHP 100,000 for Civil Indemnity, PHP 100,000 for Moral Damages, and PHP 100,000 for Exemplary Damages, totaling PHP 300,000 in mandatory minimum awards.
- Crimes where the penalty is Reclusion Perpetua (e.g., Murder, Parricide, Consummated Rape): PHP 75,000 for Civil Indemnity, PHP 75,000 for Moral Damages, and PHP 75,000 for Exemplary Damages, totaling PHP 225,000 in mandatory minimum awards.
- Crimes where the penalty is Reclusion Temporal (e.g., Simple Homicide): PHP 50,000 for Civil Indemnity, PHP 50,000 for Moral Damages, and PHP 50,000 for Exemplary Damages, totaling PHP 150,000 in mandatory minimum awards.
- Frustrated Murder or Frustrated Parricide: PHP 50,000 for Civil Indemnity, PHP 50,000 for Moral Damages, and PHP 50,000 for Exemplary Damages, totaling PHP 150,000.
- Attempted Murder or Attempted Parricide: PHP 25,000 for Civil Indemnity, PHP 25,000 for Moral Damages, and PHP 25,000 for Exemplary Damages, totaling PHP 75,000.

4. Extinction and Survival of Civil Liability (Articles 112 and 113, RPC)

Civil liability established in Articles 100 to 111 is extinguished in the same manner as other obligations under the Civil Code (payment, loss of the thing, condonation, confusion, compensation, novation).

The Definitive People v. Bayotas Doctrine on the Death of the Accused

People v. Rogelio Bayotas (236 SCRA 239, G.R. No. 102007, 2 September 1994)

The Supreme Court En Banc synthesized the canonical rules on the survival of civil liability upon the death of an accused pending criminal proceedings:

1. Death of the accused PENDING APPEAL from conviction totally EXTINGUISHES his criminal liability as well as civil liability based solely on the crime (delict / ex delicto).
2. Corollarily, the claim for civil liability survives and may be pursued in a separate civil action if the civil liability arises from sources OTHER THAN DELICT, such as law, contracts, quasi-contracts, or quasi-delicts (tort under Art. 2176, Civil Code).
3. Where the civil action may be independently instituted under Arts. 32, 33, 34, and 2176 of the Civil Code, the action must be filed against the executor or administrator of the deceased accused's estate under Rule 87 of the Rules of Court.
4. If the death occurred BEFORE ARRAIGNMENT, the criminal case is dismissed without prejudice to any independent civil action.
5. If death occurs AFTER FINAL CONVICTION, civil liability ex delicto is NOT extinguished and execution may issue against the estate of the deceased convict.